

Tamara Olding, Ravenous Equality and Reconcilable Differences

Aboriginal and Treaty Rights, 2007

Raven Vest





Where treaties remain to be concluded, the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims... Treaties serve to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty, and to define Aboriginal rights guaranteed by s. 35 of the Constitution Act 1982. Section 35 represents a promise of rights recognition, and "[i]t is always assumed that the Crown intends to fulfil its promises"... This promise is realized and sovereignty claims reconciled through the process of honourable negotiation. It is a corollary of s. 35 that the Crown act honourably in defining the rights it guarantees and in reconciling them with other rights and interests. This, in turn, implies a duty to consult and, if appropriate, accommodate.

Chief Justice MacLachlan, *Haida Nation v. British Columbia/Haida Nation v. British Columbia (Minister of Forests)*, [2004] 3 S.C.R. 511, 2004 SCC 73 at para 20

The courts have ordered the governments to negotiate [treaties] based on reconciliation but instead they come to the table with a long list of bottom-line positions created by various ministries and agencies with no meaningful

involvement of First Nations. These are called treaty negotiations but inflexible government mandates leave no room to negotiate in most areas.

Robert Morales, Chief Negotiator, Hul'qumi'num Treaty Group and Chair, First Nations Summit Chief Negotiators Forum.

First Nations' and the Crown appear to be at an impasse at treaty negotiation tables across this Province. Over 60 First Nations have signed the Nanaimo Unity Protocol that calls for a reconsideration of the most substantive legal positions set out in federal and provincial mandates for treaty negotiations. The Lheidhl T'enneh, "The People of the Confluence of the Two Rivers", have voted against ratification of the first modern day treaty negotiated under the BC treaty commission process by a majority of 53 percent. This impasse may suggest that reconciliation is not meeting its noble promise. For the Lheidhl T'enneh, the acknowledgement of the equal strength of two rivers of sovereignty, Aboriginal and Crown, was insufficient for their people.

Ravenous equality and reconcilable differences. What's in a title? How does the title vest in the vest? The vest shows two Ravens, equal in stature, strength and enveloped in honourable garments. Their eyes fixed upon each other. There is a struggle at hand (or talon), for the Raven representing the Crown attempts to assert its sovereignty by placing its flag on the traditional territory of the other. Clearly, the First Nations' Raven will not allow its pre-existing rights, titles and interests to be subsumed by such an attempted assertion and is pulling the flag pole upwards. There is something of a disadvantage, as the Crown has its weight leveraged downwards. It will take all of the First Nations Raven's wing strength to overcome, but her wings have the strength of a millennia of flight in these lands.

There is an impasse and they now commence a process of reconciliation. In short, the narrative in the vest illustrates this struggle to reconcile Aboriginal and Crown sovereignty, the struggle to find true rights recognition, to fulfill section 35's noble purpose.

In my observation, this struggle towards reconciliation is playing itself out in number of contexts in British Columbia and we remain far from achieving nobility. This paper will document a number of contexts and analyse the Crown's honourable or dishonourable conduct. In particular, I will briefly address the following: (1) the First Nations Leadership Accord; (2) the *New Relationship*; (3) the BC Treaty Negotiation process; and (4) Concluding Remarks.

First Nations Leadership Council

On March 17, 2005, the Regional Chief of the BC Assembly of First Nations, the Task Group of the First Nations Summit, and the political executive of the Union of BC Indian Chiefs signed the Leadership Accord. The purpose of the Accord is to: affirm mutual respect; formalize a cooperative working relationship to politically represent the interests of First Nations in BC and develop strategies and actions to bring about significant and substantive changes to government policy that will benefit all First Nations in BC; and

focus on a range of issues and initiatives of common interest or concern among First Nations in BC, including consultation and accommodation, national processes, and social and economic program and service issues. Through the Accord, the Parties have committed to engaging in an ongoing process of dialogue through regular leadership meetings to achieve the purposes of this Accord and, where possible, develop common understandings, strategies and/or positions on identified issues of mutual concern or priority.

The Parties have also agreed to establish working groups on identified issues of concern or priority to advance those issues politically. The First Nations Leadership Council is a political process, not a new organization. Its purpose is to generate political power through cooperation and collaboration between the existing provincial First Nations organizations.⁵ Most importantly, the FNLC represents a political will for all First Nations in BC to act as unified voice on issues of policy, law and implementation. The FNLC seeks to harness this political power and authority to affect change in a proactive and reactive manner.

With regard to our embattled Ravens, the FNLC represents the realization that reconciliation cannot be done alone or divided. First Nations acting outside their own Nation, First Nations organizations in opposition with one another, Aboriginal peoples turning upon themselves, will only undermine true reconciliation. First Nations mutually recognizing and affirming each other's rights, titles and interests in a respectful manner provides the necessary strength that this struggle necessitates. Our First Nations' Raven has just caught some sweeter sea air that carries the potency of our own united Nations. She may have the upper hand.

The New Relationship

In March 2005, the First Nations Leadership Council and the Province of British Columbia signed a political accord titled the *New Relationship* with the intent of developing a new Government- to-Government relationship based on respect, recognition and accommodation of Aboriginal rights, titles and interests. The *New Relationship* has been lauded as a momentous historic reform of the Aboriginal-Crown Relations by its proponents. Key features that are particularly relevant to our discussion include:

- > First Nations self-determination through the exercise of Aboriginal title, including realizing the economic component of Aboriginal title, and exercising their jurisdiction over the use of the land and resources by First Nation governmental structures (Goal 2);

Development of mechanisms that ensure that lands and resources are managed in accordance with First Nations laws, knowledge and values and that resource development is carried out in a sustainable manner (Goal 3);

Recognition by all Parties that First Nations economic self-sufficiency will require strong economic partnerships and. shared decision-making;

Commitments to:

Develop new institutions or structures to negotiate Government-to-Government Agreements for shared decision-making regarding land use planning, management, tenuring and resource revenue and benefit sharing that recognize the need to preserve each First Nations' decision-making authority (Action Item 1);
Identify institutional, legislative and policy changes to implement the *New Relationship* (Action Item 2);
Develop additional protocols or accords to further the implementation of the *New Relationship* (Action Item 3);
Establish effective procedures for consultation and accommodation (Action Item 6);
and
Establish funding and distribution structures/institutions to support First Nations' capacity development and effective participation in consultative/accommodation processes (Action Item 5).

In the first year and half of implementation of the *New Relationship*, there have been four tangible achievements:

- (1) establishment of the \$100 million *New Relationship* Trust (see *New Relationship Trust Act*, Bill 11, 2006);
- (2) review and reform of forestry resource management, that included (i) development of the *forestry opportunities agreement* ("FOA"), replacing the former forestry *range agreement* ("FRA"),⁸ (ii) establishment of a province-wide First Nations Forestry Council, and (iii) signing of the Mountain Pine Beetle Funding Transfer Agreement;
- (3) First Nations Health Plan Memorandum of Understanding intended to close the gaps in health outcomes between First Nations and other British Columbians, through increasing collaboration and joint decision-making; and,
- (4) Education Jurisdiction Framework Agreement and the British Columbia First Nations Education Agreement which affirms First Nations authority and jurisdiction over decisions affecting First Nations students.

There are some First Nations that voice frustration with the protracted implementation of the *New Relationship*, particularly with the lack of implementation on resource areas other than forestry. Many First Nations have noted significant bureaucratic resistance at policy, administration and legislative levels. It is a fact that no statutes or regulations have been amended, BC ministries remain without a province-wide consultation and accommodation policy and procedure and other resource industries have not been publicly-identified for reform. Other First Nation leaders acknowledge this frustration but stress that that implementation remains an open-ended and must be an informed process. It will take patience to change hundreds of years of colonially-inspired governance in this Province.

For our Ravens, this promise of reconciling discussions is not a new one, Aboriginal peoples have always been in a process of negotiation with the Crown or settlers. Whether it be barter of goods or sitting arms crossed at negotiation tables, there is always time for a handshake and snickering smile. But, in this struggle that they are currently embroiled, the Crown Raven will have to cede his efforts to plant this flag, otherwise there will be no handshake. Neither one of them has the strength to wrestle and shake hands at the same time. This *New Relationship* is the agreement to set down this flag, stop the squawking and pecking and finish this life long discussion. The words are not new.

The BC Treaty Negotiation Process

At some point during the British Columbia Treaty Commission (BCTC) process, all Tables will reach a stage where the inflexible positions of Canada and BC on key aspects of treaties block progress and prevent the completion of workable, honourable, agreements. Through the sharing of information, it is clear that these barriers are similar for all First Nations. They include: Certainty; Lands; Governance; Fiscal Arrangements and Taxation, and First Nation Fisheries. (Backgrounder to Unity Protocol, October 2006)

Since 1991, 57 First Nations have been participating in the BC treaty process. Because some First Nations negotiate at a common table, there are 47 sets of negotiations. There are 39 First Nations in Stage 4 agreement-in-principle negotiations and eight First Nations in Stage 5 negotiations to finalize a treaty. There are three First Nations tables that have initialled their Final Agreement and two, Tsawwassen First Nation and Maa-nulth First Nations, awaiting ratification.

As set out above, the Leidl T'enneh Band has voted against ratification of their Final Agreement.

Since October 26, 2006, some 60 First Nations have signed on to the Unity Protocol have committed to work together to "1. develop a common approach and 2. negotiate and develop options in a collective manner through the British Columbia treaty process with Canada and British Columbia regarding matters of mutual common interest that creating barriers to our respective treaty negotiation tables." The unified group has also generally agreed five following key categories of common interest:

1. Certainty - Rejects the "rights extinguishment" approach and advocates for (a) rights recognition explicitly in treaties; and (b) a negotiated limited surrender.
2. Lands and Co-Management - Rejection of Crown approach on low land quantum and determination that all treaty settlement land must be non-91(24) lands. Position that land quantum must be revisited and true negotiation that allows First Nations to determine the legal status of categories of treaty settlement land (i.e., fee simple, reserve status and other types of title). On land management, they call for constitutionally recognized shared- decision making, not minimal participatory rights as the current model entails.

3. Governance - Rejection of the concurrent jurisdiction model advanced by BC and Canada. Position that First Nation laws must take precedence on treaty settlement lands, except with issues of national significance, national defence and criminal code where specific exceptions must be set out.
4. Fiscal Relations and Taxation - Position for: (a) increased implementation monies; (b) tax exemption of an First Nations, their public corporation and institutions; (c) own source revenue not to be considered as an offset to transfer funding; (d) reconciliation of section 87 tax exemption to be on par with other treaty First Nations' citizens in other areas of Canada.
5. Fisheries - In order to ensure that First Nations retain their first right to fish, after the interests of conservation, treaties must: (a) recognize and affirm the priority aboriginal right to Food Social and Ceremonial fish for all species; (b) where appropriate, include commercial fishing rights to earn a moderate livelihood or to generate funds for First Nations to use in fisheries management and habitat enhancement; (c) provide for First Nations to have a legal role in all decision-making processes related to the stewardship, management, and annual allocation processes of the Crown, and; (d) provide for First Nations' access to annual FSC requirements in areas where there is adequate abundance and as changes occur in species availability, subject to the first right of the First Nation whose traditional territory the abundance occurs to meet its FSC and any other treaty right

The BCTC process appears to be at an impasse with these two countervailing directions. One group of First Nations seems on the eve of ratifying their final settlement on terms that are for the most part templates. Another coalition rejects many of the substantive components of the existing offers and is attempting to use strength in numbers to force a meaningful reconsideration of the treaty mandates. On informal knowledge, the Province and Canada have refused all invitations from the signatories of the Unity Protocol to meet in person.

If promise of section 35 of the *Constitution Act*, 1982, is to be "realized and sovereignty claims reconciled through the process of honourable negotiation", First Nations in BC appear to be sending a very strong message. The offer at treaty tables is inadequate. At minimum, it would appear that this impasse will require consultation with the unity protocol coalition to proceed forward. A very telling indication will be in the results of the ratification votes for Tsawwassen and Maa-nulth. Maa-nulth is already a diminished successor to the Nuuchal-nulth Tribal Council.

As for our Ravens, this may be the real test. Their eyes have an intensity and resolve that seems unwavering on reconciliation, a true meeting and agreement as equals. The Crown Raven's stranglehold on its flag could not be more forceful. The flag in itself represents a justification of sovereignty that Crown cannot question. If it could, the Crown would clothe itself in its flag. The First Nations' Raven rejects everything this flag stands for - it is a false assertion in a foreign land. If it could, the flag would be ripped into threads. Only the pre-existing joint Aboriginal title would remain in this territory. No one will win this battle.

Concluding Remarks

Our embattled Ravens, have rested their wings for a moment of reflection. Perhaps, to look upon their own image in something reflective. It may take just that introspection that is required to get beyond this impasse. It may take the Crown and First Nation Ravens examination of each other's motives to find some peace, some equality, some equity. For the Crown, a reconsideration of the weight placed on First Nations rights, title and interests is absolutely necessary. It may be fair to say that we are at a time where the Provincial Crown acknowledges but not truly recognize our rights. Recognition requires more than just a nod in speeches and lip service at the politically correct opportunity. Recognition requires integrating rights recognition into all policy, manual, guideline that directs the Crown. It will takes some time.

For the First Nations' Raven, reconciliation is the promise, the hope of this challenging old relationship. Reconciliation is that utopia where oral histories ate on equal footing, where everything is legally and morally defensible, where our laws can be read together. Getting to that utopia will very likely require all of her strength, patience and unity. With initiatives such as the Unity Protocol, First Nations Leadership Council and the *New Relationshz*/, there may be reason for hope.